

24TRCV03915 24TRCV03915

County: los-angeles

Division: Civil Law and Motion

Department: 5

Hearing date: 2026-08-07

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Case Number: 24TRCV03915 Hearing Date: August 7, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

JB&B CAPITAL, LLC

;

Plaintiff,

vs.

REU.SPA INCORPORATED

, et al.;

Defendants.

Case

No.:

24TRCV03915

Hearing

Date:

August

7, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

plaintiff

and judgment creditor jb&b capital, llc's motion for assignment order in aid of judgment

MOVING PARTY: Plaintiff and Judgment Creditor,
JB&B Capital, LLC

RESPONDING PARTY: No opposition.

(1) Plaintiff and Judgment Creditor JB&B Capital, LLC's Motion for Assignment Order in Aid of Judgment is DENIED pursuant to Code of Civil Procedure section 708.510.

The Court considers the moving papers filed on April 14, 2026. To date, no opposition brief has been filed.

BACKGROUND

Factual Background

On November 19, 2024, plaintiff and judgment creditor JB&B Capital, LLC ("Plaintiff" or "Judgment Creditor") filed the Complaint against defendants REU.SPA Incorporated, Robert Gibbs, and DOES 1 through 10. The Complaint includes the following causes of action: (1) Breach of Equipment Finance Agreement; (2) Breach of Guaranty; (3) Account Stated; and (4) Claim and Delivery.

On June 16, 2025, Plaintiff dismissed DOES 1 through 10 without prejudice. On the same date, the Court entered default against REU.SPA Incorporated and Robert Gibbs (collectively, "Debtors").

On August 5, 2025, the Court entered a default judgment against Debtors, determining that they owed: (1) \$191,152.52 in damages; (2) \$30,072.13 in prejudgment interest; (3) \$3,801.53 in attorney fees; and (4) \$597.20 in costs, resulting in a total amount due of \$225,623.38.

On October 3, 2025, the Court signed a writ of execution for a money judgment.

Procedural
Background

On April 14, 2026, Judgment
Creditor filed the motion. To date, no
opposition brief has been filed.

LEGAL STANDARDS

"Except as otherwise provided by law, upon application of the judgment creditor on noticed motion, the court may order the judgment debtor to assign to the judgment creditor or to a receiver appointed pursuant to Article 7 (commencing with Section 708.610) all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments, including but not limited to the following types of payments: ¶ (1) Wages due from the federal government that are not subject to withholding under an earnings withholding order. ¶ (2) Rents. ¶ (3) Commissions. ¶ (4) Royalties. ¶ (5) Payments due from a patent or copyright. ¶ (6) Insurance policy loan value." (Code Civ. Proc., § 708.510, subd. (a).) "The notice of the motion shall be served on the judgment debtor. Service shall be made personally or by mail." (Code Civ. Proc., § 708.510, subd. (b).)

"Subject to subdivisions (d), (e), and (f), in determining whether to order an assignment or the amount of an assignment pursuant to subdivision (a), the court may take into consideration all relevant

factors, including the following: ¶ (1) The reasonable requirements of a judgment debtor who is a natural person and of persons supported in whole or in part by the judgment debtor. ¶ (2) Payments the judgment debtor is required to make or that are deducted in satisfaction of other judgments and wage assignments, including earnings assignment orders for support. ¶ (3) The amount remaining due on the money judgment. ¶ (4) The amount being or to be received in satisfaction of the right to payment that may be assigned.” (Code Civ. Proc., § 708.510, subd. (c).)

“A right to payment may be assigned pursuant to this article only to the extent necessary to satisfy the money judgment.” (Code Civ. Proc., § 708.510, subd. (d).) “When earnings or periodic payments pursuant to a pension or retirement plan are assigned pursuant to subdivision (a), the amount of the earnings or the periodic payments assigned shall not exceed the amount that may be withheld from a like amount of earnings under Chapter 5 (commencing with Section 706.010) (Wage Garnishment Law).” (Code Civ. Proc., § 708.510, subd. (e).)

“Where a specific amount of the payment or payments to be assigned is exempt by another statutory provision, the amount of the payment or payments to be assigned pursuant to subdivision (a) shall not exceed the amount by which the payment or payments exceed the exempt amount.” (Code Civ. Proc., § 708.510, subd. (f).)

DISCUSSION

Here, the record reflects that Gibbs is a judgment debtor as a result of a default judgment entered on August 5, 2025, against Debtors, totaling \$225,623.38. (Declaration of Nick I. Iezza (“Iezza Decl.”), ¶ 2.) Furthermore, Nick I. Iezza, the attorney for Judgment Creditor, asserts that Gibbs has not made any voluntary payments toward the judgment. (Iezza Decl., ¶ 4.) Judgment Creditor seeks the right to any and all rights or payments that become due from the above-mentioned third-party payors. (Iezza Decl., ¶ 5.)

Iezza claims, based on information and belief, that Gibbs is receiving monies “from all the following third-party payors: Kaiser Permanente, Blue Cross of California/Anthem Blue Cross, Blue Shield of California, United Healthcare, Cigna Healthcare, Health Net of California, Inc., Aetna and any other third-party insurance company or health care payor ... for services rendered as a health care provider at Dr. G LipoSculpture Center.” (Iezza Decl., ¶ 6.) Iezza clarifies that Gibbs is

not an employee of these third-party payors.

(Iezza Decl., ¶ 5.)

However, the Judgment Creditor has failed to provide substantive evidence to support the assertion that Gibbs is receiving payments from these entities, aside from the claim itself.

As such, without more, the Motion is DENIED.

ORDERS

1) Plaintiff

and Judgment Creditor JB&B Capital, LLC's Motion for Assignment Order in Aid of Judgment is DENIED.

2) Plaintiff

and Judgment Creditor is ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: August 7, 2026

Tamara

Hall

Judge

of the Superior Court